

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205432	TRACY III vs CITY OF HEMET	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON

Tentative Ruling:

Plaintiffs Joseph Tracy Iii and Gina Tracy, individually and as successors-in-interest to Joseph Thomas Tracy IV ("Plaintiffs") allege that on January 18, 2022, Decedent Joseph Tracy IV ("Decedent") was a guest at the Travelodge located on Florida Ave. in Hemet. (TAC, ¶ 19.) Multiple men dressed in street clothing, including Defendants Sergeant Paez and Detective Kerr and several other peace officers who were not easily identifiable as law enforcement officers, aggressively approached Decedent in the parking lot of the Travelodge, although there had been no report of a violent crime or ongoing threat to the safety of the officers. (TAC, ¶¶ 19-20.) Decedent ran away and took cover next to a vehicle. (TAC, ¶ 21.) At no time did any of the men pursuing Decedent identify themselves as police officers. (TAC, ¶ 21.) While Decedent was taking cover, Sergeant Paez and Detective Kerr fired their weapons for a total of approximately 15 rounds, and several rounds struck Decedent causing his death. (TAC, ¶¶ 22-26.) At no time did Sergeant Paez or Detective Kerr provide any warning that they were going to shoot before discharging their firearms. (TAC, ¶ 29.) Decedent was not visibly or otherwise armed at the time he was shot, and the actions of Detective Kerr and Sergeant Paez has no bearing on any investigative purpose. (TAC, ¶¶ 30-32.)

Plaintiffs filed the Complaint on Decembre 15, 2022 and the Operative Third Amended Complaint ("TAC") on November 9, 2023. Plaintiffs assert three causes of action for: (1) Assault and Battery (against all Defendants); (2) Negligence; and (3) Violation of the Tom Bane Civil Rights Act.

The City of Riverside and Detective Kerr ("Defendants") now move for summary judgment, or in the alternative, summary adjudication of each cause of action and the claim for punitive damage. Defendants argue that the use of deadly force was objectively reasonable. Defendants argue that the first cause of action fails because there is no evidence of an intentional touching by Kerr since the evidence shows that the bullets that killed Decedent were not fired from Kerr's gun. Defendants argue that Plaintiffs cannot establish causation. Defendants argue that the negligence claim fails because Kerr's actions were reasonable. Defendants argue that the third cause of action fails because Plaintiffs cannot establish specific intent to violate Decedent's civil right. Defendants argue that the third cause of action is barred by collateral estoppel. Defendants argue that Defendants are immune under Gov. Code § 820.2. Defendants argue that Plaintiffs have not established a claim for punitive damages.

Plaintiffs argue that Kerr's actions were not reasonable since Decedent was unarmed and never threatened the police officers. Plaintiffs argue that many of the bullets that struck and killed Decedent were not found or analyzed. Therefore, there are triable issues as to whether Kerr's acts were a substantial factor in causing Decedent's

death. Plaintiffs argue that all Defendants acted in concert and are jointly liable. Plaintiffs argue that Kerr was negligent since there was no immediate threat of death or serious injury. Plaintiffs argue that Kerr's pre-shooting conduct was negligent. Plaintiffs argue that the Banes Act cause of action may be based on recklessness. Plaintiffs argue that collateral estoppel does not apply because there was no final judgment in the Federal Action. Plaintiffs argue that Section 820.2 immunity does not apply to unreasonable force cases. Plaintiffs argue that the shooting constitutes malice or oppression for the purpose of punitive damages.

In their Reply, Defendants again argue that Plaintiffs cannot establish an intentional touching because Kerr's gun did not fire the bullets that struck Decedent. Defendants argue that Plaintiffs' expert report is inadmissible. Defendants again argue that Plaintiffs cannot establish causation and the concurrent causes doctrine does not apply. Defendants argue that the claims are barred by collateral estoppel because the dismissal with prejudice is a determination on the merits.

ANALYSIS:

Request for Judicial Notice:

Defendants request judicial notice of the TAC, the Complaint in Estate of Joseph Tracy, et al v. Riverside Police Department et al, Case No. 5:23-cv-2641, filed in the United States District Court, Central District of California on December 29, 2023 ("Federal Action") and the Order Granting Stipulation to Dismiss case filed in the Federal Action. These documents may be judicially noticed pursuant to Evid. Code §452(d), which permits judicial notice of court records.

Defendants' Evidentiary Objections:

Defendants' objections should be sustained. Reports of non-testifying experts are hearsay. (*People v. Landau* (2016) 246 Cal. App. 4th 850, 874.) Plaintiffs have not produced a sworn declaration from Mr. Clark.

Standards on Summary Judgment:

Any party may move for summary judgment in any action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a).) A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal. 4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4th 826, 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) The moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) "Any doubts as to the propriety of granting

the motion are resolved in favor of the party opposing the motion.” (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal. App. 4th 1017, 1048.)

Pursuant to CCP §437c(f)(1), a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, claims for damages or issues of duty. “Summary adjudication motions are procedurally identical to summary judgment motions.” (*Serri v. Santa Clara University* (2014) 226 Cal. App. 4th 830, 859.) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, affirmative defense, claim for damages or issue of duty, which has no merit. (*Smith v. Wells Fargo Bank, N.A.* (2005) 135 Cal. App. 4th 1463, 1472.)

Collateral Estoppel:

“The doctrine of res judicata precludes parties or their privies from relitigating a cause of action that has been finally determined by a court of competent jurisdiction.” (*Bernhard v. Bank of America Nat’l Trust & Sav. Association* (1942) 19 Cal. 2d 807, 810.) The doctrine of res judicata has two aspects: the first is referred to as claim preclusion, which operates as a bar to the maintenance of a second suit between the same parties on the same cause of action, and the second as collateral estoppel, or issue preclusion, which applies in a second suit based on a different cause of action where a prior judgment in a prior suit operates as a conclusive adjudication as to such issues as were actually litigated and determined. (*Ibid.*)

“Collateral estoppel precludes relitigation of issues argued and decided in prior proceedings.” (*Lucido v. Superior Court* (1990) 51 Cal. 3d 335, 341.) “Collateral estoppel means simply that when an issue of ultimate fact has once been determined by a valid and final judgment, that issue cannot again be litigated between the same parties in any future lawsuit.” (*Lucas v. County of Los Angeles* (1996) 47 Cal. App. 4th 277, 286.) There are five threshold issues for the application of collateral estoppel: (1) the issue sought to be precluded must be identical to that decided in a former proceeding; (2) the issue must have been actually litigated in the former proceeding; (3) it must have been necessarily decided in the former proceeding; (4) the decision in the former proceeding must be final and on the merits; and (5) the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. (*Lucido, supra*, 51 Cal. 3d at 341.) The party asserting the preclusion has the burden of establishing each of these elements. (*Ibid.*) The court should examine the record from the prior proceeding, including the pleadings, evidence, jury instructions and findings or verdicts, to determine whether an issue was actually litigated. (*Hernandez v. City of Pomona* (2009) 46 Cal. 4th 501, 511-512.)

Defendants argue that Plaintiffs’ claims are barred because the same issues were litigated in the Federal Action, which involved the fatal shooting of Decedent on January 18, 2022 at the Travelodge. (Deft. COE, Ex. 14, ¶21.) Plaintiffs alleged that Defendants Paez and Kerr shot Decedent multiple times despite the fact that there was no report of violent crime, no ongoing crime and no threat to the safety of the police officers. (Id at ¶¶23-27.) Plaintiffs asserted that the use of deadly force was not objectively reasonable and in violation of Decedent’s Fourth Amendment rights. (Id at

¶35.) The Complaint in the Federal Action included four causes of action for: (1) Excessive Force in Violation of the Fourth Amendment (42 USC § 1983); (2) Interference with Familial Relationship in Violation of Fourteenth Amendment 42 USC § 1983; (3) Municipal Liability – Unconstitutional Policy, Custom, Practice (42 USC § 1983); and (4) Municipal Liability – Failure to Train (42 USC § 1983). On November 25, 2025, the Federal claims were dismissed with prejudice. (COE, Ex. 15.)

Plaintiffs argue that the present action is not precluded because there was no final determination on the merits in the Federal Action. “An issue is actually litigated “[w]hen [it] is *properly raised*, by the pleadings or otherwise, and is submitted for determination, and is *determined*.” (*People v. Sims* (1982) 32 Cal. 3d 468, 484, emphasis in original, superseded by statute on other grounds as noted in *Gikas v. Zolin* (1993) 6 Cal.4th 841, 851.)

While a voluntary dismissal with prejudice, or retraxit, operates as a final judgment for the purpose of claim preclusion, there appears to be a split in authority as to whether the same is true for collateral estoppel. Defendants rely on *Alpha Mechanical, Heating & Air Conditioning, Inc. v. Travelers Casualty & Surety Co. of America* (2005) 133 Cal. App. 4th 1319, wherein the Court held that the voluntary dismissal operated as a judgment on the merits for the purpose of collateral estoppel. (Id at 1333.) However, other courts have held that a dismissal which avoids trial does not constitute actual litigation of the issues and therefore collateral estoppel does not apply. (*Rice v. Crow* (2000) 81 Cal. App. 4th 725, 736-737.) “In the case of a judgment entered by confession, consent, or default, none of the issues is actually litigated.” (Id at 737, citing Rest.2d Judgments, § 27, com. e, p. 257. In *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal. 4th 788, the California Supreme Court stated, “Although there is some controversy in the matter, the dominant rule in this state is that an issue that has been settled by a voluntary dismissal with prejudice does not constitute an issue that has been “actually litigated” for collateral estoppel purposes.” (Id at 810.) This Court follows the holding in *Boeken* and find that the issues raised in the Federal Action complaint were not actually litigated as a result of the voluntary dismissal. Accordingly, the claims raised in the present action based on the same issues are not barred by collateral estoppel.

Governmental Immunity:

Gov. Code § 815.2 provides that a public entity may be vicariously liable for injury proximately caused by its employee’s act or omission within the scope of employment if the act or omission would otherwise have given rise to a cause of action against the employee. Gov. Code § 820 provides: “Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person.” (Gov. Code § 820(a).)

Gov. Code § 820.2 grants immunity to public employees for injuries resulting from certain discretionary decisions by providing: “Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.” But “virtually every public act admits of some

element of discretion.” (*Tarasoff v. Regents of Univ. of Cal.* (1976) 17 Cal.3d 425, 445 [citing *Johnson v. State of Cal.* (1968) 69 Cal.2d 782].) However, section 820.2 does not provide immunity from liability for a peace officer for the use of unreasonable force in making an arrest. (*Scruggs v. Haynes* (1967) 252 Cal. App. 2d 256, 267-268.) Thus, Detective Kerr is not immune from liability if unreasonable force is established.

Assault and Battery:

In order to plead battery by a peace officer, a plaintiff must plead and prove: (1) the defendant intentionally touched the decedent; (2) the defendant used deadly force on the decedent; (3) the use of deadly force was not necessary to defend human life; (4) the decedent was killed; and (5) the defendant’s use of deadly force was a substantial factor in causing the decedent’s death. (CACI 1305B; see also BAJI 7.54; *Edson v. City of Anaheim* (1998) 63 Cal.App.4th 1269, 1273 [“By definition then, a prima facie battery is not established unless and until plaintiff proves unreasonable force was used.”])

Defendants argue that Plaintiff cannot establish an intentional touching for the purpose of the battery claim because the evidence shows that the bullets that struck Decedent were not fired from Kerr’s weapon. It is undisputed that, during the incident, Detective Kerr, who is employed by the Riverside Police Department, was the only officer armed with a Glock 17 handgun. (UMF Nos. 5, 40, 42.) It is also undisputed that fifteen shots were fired collectively between Paez, Porrazzo, Smith, and Kerr within approximately four seconds. (UMF No. 43, 53.) Defendants admit that Kerr shot at Decedent. (UMF No. 41.)

Decedent died as a result of multiple gunshot wounds. (UMF No. 55.) During the autopsy performed by Dr. Mark Fajardo, 11 bullet wounds were noted and five bullets were recovered from the body of Decedent. (UMF Nos. 58-60.) Ryan Nunez of the California Department of Justice examined the bullets and authored a report indicating that none of the bullets recovered from the body was fired from a Glock 17 handgun. (UMF No. 66.) Defendants’ forensic expert analyzed the relative positions of the body and the officers involved and concluded that these perforating wounds were not caused by the shot fired by Kerr. (Decl. of Englert, ¶¶ 27-33.) Plaintiffs have not produced any admissible evidence to contradict Defendants’ expert. As such, Plaintiffs have not established that there is a triable issue the first element of the battery claim, the intentional touching.

However, the first cause of action asserts both assault and battery. Generally, “an assault is a demonstration of an unlawful intent by one person to inflict immediate injury on the person of another then present.” (*Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1603-04.) “A civil action for assault is based upon an invasion of the right of a person to live without being put in fear of personal harm.” (*Id.* at 1604.) Because assault does not require an actual touching, and it is undisputed that Kerr shot at Decedent, the fact that none of the bullets that actually struck Decedent were fired by Kerr is not dispositive of the entire cause of action.

Defendants argue that the first cause of action fails because Kerr's use of force was objectively reasonable. Under the 4th Amendment, police may use only such force as is objectively reasonable under the circumstances. (*Graham v. Connor* (1989) 490 U.S. 386, 397.) Whether an officer's action is reasonable "requires careful attention to the facts and circumstances of each particular case, including the severity of the crime at issue, whether the subject poses an immediate threat to the safety of the officers or others, and whether he is actively resisting arrest or attempting to evade arrest by flight." (*Id.* at 396.) The reasonableness of a particular use of force is judged from the perspective of a reasonable officer on scene. (*Brown v. Ransweiler* (2009) 171 Cal.App.4th 516, 526-527.) "In calculating whether the amount of force was excessive, a trier of fact must recognize that peace officers are often forced to make split-second judgments, in tense circumstances, concerning the amount of force required." (*Id.* at 528.) Where potential danger exists, deadly force is reasonable if the officer has probable cause to believe that the suspect poses a significant threat of death or serious harm to the officer or others. (*Id.*)

At the time of the incident, the Riverside County District Attorney's Gang Impact Team (GIT) carried out an operation to perform a probation search on Decedent at a Travelodge motel in the City of Hemet based on information received from a confidential informant that Decedent was selling fentanyl and was in possession of a firearm. (UMF Nos. 1 and 2.) At the time, Decedent was on felony probation for a pending firearm case. (UMF No. 3.) The officers involved in the operation, including Kerr, were informed of this information, and that an underaged female, believed to be a human trafficking victim, was also in the hotel room with Decedent. (UMF No. 8.) The GIT officers attempted to lure Decedent out of the hotel room to separate him from the minor female. (UMF No. 9.) To do so, Detective Kerr tossed a half-full water bottle at the window. (UMF No. 15.) Decedent exited the from the south side of the Travelodge. (UMF No. 16.) The Travelodge surveillance video shows Decedent running around the corner of the building chased by several officers. (NOL, Ex. 10.) Decedent then hid behind an SUV parked next to the building and then ran between two vehicles. (*Id.*) One of the officers apparently stated that Decedent had his hand in waistband, although this is not clear from the video. (UMF No. 19, Ex. 10.) Just prior to the shooting, as Decedent was running in the parking lot, an officer shouts, "Let me see your hands." and "He's reaching. He's reaching. He's reaching. I don't know what he's reaching for." (NOL, Ex. 7.) Although a handgun was found next to the motel wall where Decedent had been, it appears that he was no longer armed at the time he was shot. (UMF No. 56.) While this is a very close call, any doubt about the propriety of granting the motion is resolved in favor of the party opposing it. (*Marshak v. Ballesteros* (1999) 72 Cal.App.4th 1514, 1517.) Because the surveillance video does not show that Decedent was armed or threatening the officers, there appears to be triable issues of fact as to whether unreasonable deadly force was used.

Finally, Defendants argue that the first cause of action fails because Plaintiffs cannot establish causation since the bullets retrieved from the body were not fired from Kerr's Glock 17. Plaintiffs do not dispute this fact, but contend that it is not clear whether the additional gunshot wounds from bullets that were not retrieved were fired from Kerr's weapon. Plaintiffs argue that "[i]t is the law of this state that each of several joint tortfeasors or independent wrongdoers who inflict simultaneous, or practically

simultaneous, injuries upon a plaintiff must carry the burden of establishing that his own wrong did not contribute to the damages, or the extent to which it did so.” (*Hughey v. Candoli* (1958) 159 Cal. App. 2d 231, 240.) However, as stated above, Defendants have produced evidence that the additional bullet wounds were not caused by Kerr based on their forensic expert’s analysis of the relative positions of Decedent and Kerr. (Decl. of Englert, ¶¶ 27-33.) Plaintiffs have not produced admissible evidence to contradict this expert opinion. Accordingly, they have not raised issues as to causation with respect to the Assault and Battery Cause of Action. Summary adjudication is granted.

Negligence:

“[I]n order to prove facts sufficient to support a finding of negligence, a plaintiff must show that [the] defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.” (*Hayes v. County of San Diego* (2013) 57 Cal. 4th 622, 629.) It is well-established that peace officers have a duty to act reasonably when using deadly force, which is determined in light of the totality of the circumstances. (*Ibid*; *Grudt v. City of Los Angeles* (1970) 2 Cal.3d 575, 585-588.) “Law enforcement personnel’s tactical conduct and decisions preceding the use of deadly force are relevant considerations under California law in determining whether the use of deadly force gives rise to negligence liability. Such liability can arise, for example, if the tactical conduct and decisions show, as part of the totality of the circumstances, that the use of deadly force was unreasonable.” (*Hayes v. County of San Diego* (2013) 57 Cal.4th 622, 639 (*Hayes*).)

As stated above, based on the videos of the incident, there are triable facts as to whether unreasonable deadly force was used.

In their Opposition, Plaintiffs argue that Detective Kerr’s pre-shooting tactical decisions were negligent and directly contributed to the death of Decedent, including the failure to take cover, failure to use contact and cover tactics, failure to use other de-escalation tactics. The TAC is somewhat vague on this point, but Plaintiffs allege that, in addition to the fatal shots, the negligent and reckless tactics of Defendants Paez and Kerr caused the death of Decedent. (TAC, ¶34.) Instead of taking cover and developing a proper tactical plan, Defendants Paez and Kerr pounced on Decedent and created a dangerous situation for Decedent and themselves. (Id at ¶ 21.) Although the evidence suggests that the bullets from Kerr’s weapon did not strike Decedent, Defendants have not established that Kerr’s pre-shooting tactical decisions did not cause or contribute to the death. As such, triable issues exist. Summary adjudication is denied.

Violation of the Bane Act:

The Bane Act establishes a private right of relief when “a person or persons, whether or not acting under color of law, interferes by threats, intimidation, or coercion, or attempts to interfere by threats, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by” the federal or state Constitutions or laws. (Civ. Code § 52.1(a).) To state a cause of action under Civ. Code § 52.1, a plaintiff must allege that the defendant, by threatening or committing a

violent act, interfered or attempted to interfere with the plaintiff's constitutional rights; that the plaintiff reasonably believed that if he exercised his constitutional rights the defendant would commit violence against him; that the defendant injured the plaintiff to prevent the exercise of a constitutional right or in retaliation for its exercise; that the plaintiff was harmed; and that the defendant's conduct was a substantial factor in causing that harm. (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 882; CACI 3066.) No showing of discriminatory animus is required. (*Venegas v. County of Los Angeles* (2004) 32 Cal.4th 820, 841.)

"The essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., 'threats, intimidation or coercion'), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law." (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470.) To prove a claim under the Bane Act, the plaintiff must demonstrate that the interference with the constitutional right was accompanied by an act of coercion. (*Jones v. Kmart*, (1998) 17 Cal.4th 329, 334.) A violation of the Bane Act cannot be founded only on a constitutional violation which, in and of itself, is inherently coercive. (*Shoyoye v. County of Los Angeles*, (2012) 203 Cal.App.4th 947, 959.)

Defendants argue that Plaintiffs cannot establish a claim under the Bane Act because there is no evidence that Detective Kerr intended to interfere with Decedent's rights. To be actionable, Bane Act claims require admissible evidence of the defendant's specific intent to violate the plaintiff's constitutional rights. Liability under the Bane Act requires an officer to have had "a specific intent to violate the arrestee's right to freedom from unreasonable seizure." (*Reese v. Cty. of Sacramento*, 888 F.3d 1030, 1043 (9th Cir. 2018) (quoting *Cornell v. City & Cty. of S.F.* (2017) 17 Cal.App.5th 766.) Evidence simply showing that an officer's conduct amounts to a constitutional violation under an "objectively reasonable" standard is insufficient to satisfy the additional intent requirement under the Bane Act. (See *id.* at 1045). "Although Bane Act claims do require the specific intent to deprive a person of constitutional rights, such intent can be proven by evidence of recklessness." (*S.R. Nehad v. Browder* (2019) 29 F.3d 1125, 1142, fn. 15.)

While there is no evidence that Detective Kerr intended to violate Decedent's constitutional rights by using unreasonable deadly force and pre-shooting tactics, there are triable facts as to whether Kerr's actions were reckless. The incident was the result of a probation violation search rather than a response to a violent crime. (UMF No. 9.) It is undisputed that Kerr threw an object at the window of Decedent's hotel room to entice him to leave the room. Based on the video obtained from the Travelodge, Decedent appears to be fleeing rather than threatening the police officers. (NOL, Ex. 10.) He does not appear to be brandishing or reaching for a weapon. (*Id.*) Based on this evidence, there are triable issues of fact. Summary adjudication is denied.

Punitive Damages:

A claim for punitive damages is one of the substantive areas, which is properly the subject of a motion for summary adjudication. (*Catalano v. Superior Court* (2000) 82

Cal.App.4th 91, 92.) Plaintiffs may recover punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294(a).) As defined in the statute, malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1).) Despicable conduct is conduct which is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.)

Given there are triable issues of material fact as to the reasonableness of the deputies’ actions, there are triable issues of material fact as to whether punitive damages are warranted. Summary adjudication is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. vs HOOVER	MOTION TO COMPEL TO COMPEL FURTHER RESPONSES TO FIRST SET OF FORM INTERROGATORIES

Tentative Ruling:

Factual/Procedural Context

First Amended Complaint (FAC) & Allegations. Plaintiff ASL Builders, Inc. (or “ASL”) alleges that Defendants, Randy and Chrystal Hoover, own real property in Riverside (the “Property”). Plaintiff alleges that in September 2021, it entered into a written construction contract with Defendants where Plaintiff would provide labor, work, equipment, materials, and services, on a private work of improvement on the Property for \$1,094,768.47. Plaintiff alleges it fully performed except for covenants and obligations that were excused or waived. Defendants have only paid \$994,268.97 leaving a balance due of \$100,499.50, which Plaintiff has demanded but Defendants refuse to pay. The operative FAC, filed on May 26, 2023, asserts six causes of action: (1) breach of contract; (2) work, labor and services/agreed price; (3) open book account; (4) account stated; (5) reasonable value/work, labor and services; and (6) foreclosure on mechanic’s lien.

On March 4, 2026, Cross-Complainants, the Hoovers, filed their Third Amended Cross-Complaint (TACC) alleging 15 causes of action: (1) breach of contract; (2) damages for breach of warranty and failure to preserve warranties on home system; (3) damages for negligent work and defective materials; (4) enforcement of statutory bond; (5) tortious breach of implied covenant of good faith and fair dealing; (6) negligence; (7) fraud; (8) violations of the California Consumers Legal Remedies Act, Civil Code § 1750 et seq; (9) Unfair Business Practices in Violation of Business & Professions Code § 17200 et seq; (10) Violations of California Business and Professions Code §§ 7160, 7161 for fraud and deceit; (11) Rescission of Purported Home Improvement